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Viability and competition

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SUMMARY SHEET

“Viability and competition” — Serge Diebolt, Jean-Marc Durrieu

Overview: Scholarly article by Serge Diebolt and Jean-Marc Durrieu, “Viability and competition”, comparing two opposing modes of regulation in economics and law, taken from the “Law and Society” section.

Key points

The authors contrast two opposing modes of “complex” regulation of economic activity, drawing on complexity theories applied to law. The introduction sets out the tension between consumption and conservation of resources, and the need for law to account not only for the state of the law but also for its changes. The article is a work of theoretical reflection, not one of the documents of the proceedings.

Significance

A scholarly text included for documentary purposes, extending the reflection on regulation and economic viability — themes that the Collorafi case illustrates in concrete terms.

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Source: bernardcollorafi.org/en/documents/legal-scholarship-diebolt-durrieu-viability-competition/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original document is authoritative.